



**NATIONAL INVESTIGATION AGENCY
FIRST INFORMATION REPORT
(Under Section 154 Cr. P.C)**

Book No. 01

Sl. No. 339

1. District: New Delhi

PS: NIA, New Delhi

Year: 2024

FIR No. RC-08/2024/NIA/DLI

Date: 13.06.2024

2. Acts & Sections:

- (i) **Indian Penal Code,** : Sections 286, 326, 308, 304 & 120B
1860
- (ii) **Explosive Substances** : Sections 3, 4 & 5.
Act, 1908

3. (a) Suspected Offence:

On 23.02.2022 PS Amta, District Howrah Rural, West Bengal, received an information that 3-4 persons were making live bombs at a ground nearby Chandrapur Bazar with a view to commit heinous crime. During making of the bombs one of the bombs had exploded.

(b) Day: Wednesday

Date: 23.02.2022

Time: 20:35 hrs.

(c) Information received at PS NIA:

Vide Government of India, Ministry of Home Affairs, CTCR Division Order F. No. 11011/57/2024/NIA dated 11.06.2024 to take further action.

GD Entry No. 07

Date: 13.06.2024

Time: 1800 hrs.

4. Type of information: Written

5. Place of Occurrence:

- a) **Direction & Distance from PS** –8 km South East from Amta PS.
- b) **Address:** Chandrapur Bazar, PS: Amta.
- c) **In case, outside the limit of this Police Station, then Name of PS:**
Within limits

6. **Complainant /Informant**

- (a) **Name** : Shri Vipul Alok.
(b) **Father's Name** : N/A
(c) **Date of Birth/Age** : N/A
(d) **Nationality** : Indian
(e) **Passport No:** N/A **Date of Issue** : N/A **Place of Issue** : N/A
(f) **Profession** : Under Secretary to the Government of India.
(g) **Address** : CTCR Division, MHA, North Block, New Delhi.

7. **Details of Known/ Suspected/Unknown accused with full particulars (Attached separate sheet, if necessary):-**

Unknown

8. **Reasons for delay in reporting by the complainant/informant:** No delay.

9. **Particulars of Properties Stolen:** -N/A-

10. **Total value of Property Stolen.** - -N/A-

11. **Inquest Report/U.D. Case No. if any.** -N/A-

12. **First Information contents (Attach separate sheet, if required)-**

The Central Government has received information regarding registration of FIR No. 49/2022 dated 23.02.2022 at PS-Amta, District-Howrah Rural, West Bengal, u/s 3, 4 & 5 of Explosive Substances Act relating to making of live bombs at a ground nearby Chandrapur Bazar, under PS-Amta, by 3/4 persons with a view to commit heinous crime during which one of the bombs had exploded;

And Whereas, acting upon the information, the West Bengal Police had reached the incident spot and after thorough search recovered one packet roll cap, five pieces (roll) Jute made Sutali, and found good number of stone scattered lying at many places;

And whereas, during the course of investigation, sections 286, 326, 308, 304 and 120B of IPC were also added in the aforesaid case by the West Bengal Police;

And whereas, in a contempt petitions CPAN No. 698 of 2024 filed in connection with Writ Petition No. 4543 of 2022 (Sheikh Sarabat Ali Vs Union of India & Ors.), the Hon'ble High Court of Calcutta vide its judgment dated 24.05.2024 has ordered that chargesheet filed by the State police in

the aforesaid case shall be transferred to the special NIA Court at the City Civil and Sessions Court at Calcutta and NIA shall continue investigation as well as prosecution of the chregesheet before the NIA Court;

Now, therefore, in view of the order dated 24.05.2024 of the Hon'ble High Court, Calcutta and in exercise of the powers conferred under sub-section (4) of section 6 read with section 8 of the National investigation Agency Act, 2008, the Central Government has directed the National Investigation Agency to take up investigation of the aforesaid case.

The MHA order No. 11011/57/2024/NIA dated 11.06.2024, the copy of the State FIR No. 49/2022 dated 23.02.2022 and the copy of order of Hon'ble High Court, Calcutta dated 24.05.2024 are attached as **Annexure-A, Annexure-B and Annexure-C** respectively.

13. **Action taken:** Re-registered the case as RC-08/2024/NIA/DLI dated 13.06.2024 and directed Shri Subodh Sharma, DySP, NIA BO Kolkata to take up the investigation as the Chief Investigation Officer (CIO).

14. **Signature/Thumb Impression of the complainant/informant**

**Signature of Officer-in- Charge
Police Station-NIA, New Delhi**

डॉ. जया रॉय, भा.पु.से./Dr. JAYA ROY, IPS
पुलिस अधीक्षक/Superintendent of Police
राष्ट्रीय अन्वेषण अभिकरण
National Investigation Agency
गृह मंत्रालय, भारत सरकार/MHA Govt. of India
नई दिल्ली/New Delhi

15. **Date and time of dispatch to the Court**

Signature of recording officer with date

डॉ. जया रॉय, भा.पु.से./Dr. JAYA ROY, IPS
पुलिस अधीक्षक/Superintendent of Police
राष्ट्रीय अन्वेषण अभिकरण
National Investigation Agency
गृह मंत्रालय, भारत सरकार/MHA Govt. of India
नई दिल्ली/New Delhi

Enclosures:-

- (i) Government of India, Ministry of Home Affairs, CTCR Division Order F. No. 11011/57/2024/NIA dated 11.06.2024 (**Annexure-A**).
- (ii) Copy of FIR no. 49/2022 dated 23.02.2022 at PS Amta, Distt- Howrah Rural, West Bengal (**Annexure-B**).
- (iii) Copy of order of Hon'ble High Court, Calcutta dated 24.05.2024 (**Annexure-C**).

Endorsement No. - 8551 to 8556 (Copy to)

1. The Ld. Special Judge, NIA Special Court, Kolkata.
2. The Joint Secretary, CTCR Division, MHA, North Block, New Delhi.
3. The Director General of Police, West Bengal.
4. The Commissioner of Police, Kolkata.
5. The IG (NEZ), NIA Hqrs, New Delhi.
6. Shri Subodh Sharma, DySP/CIO, NIA Kolkata.
- ✓ 7. Crime Record Section, NIA Hqrs, New Delhi.
8. Crime Section, NIA, Kolkata.

RECEIVED
NATIONAL INVESTIGATION AGENCY
NEW DELHI
10/05/2018

RECEIVED
NATIONAL INVESTIGATION AGENCY
NEW DELHI
10/05/2018

F.No. 11011/57/2024/NIA
Government of India
Ministry of Home Affairs
CTCR Division

DG/NIA/MHA
New Delhi

North Block, New Delhi
Dated, the 11th June, 2024

ORDER

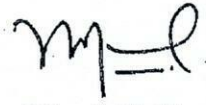
Whereas, the Central Government has received information regarding registration of FIR no. 49/2022 dated 23.02.2022 at PS- Amta, District- Howrah Rural, West Bengal; u/s 3, 4 & 5 of Explosive Substances Act relating to making of live bombs at a ground nearby Chandrapur Bazar, under PS-Amta, by 3/4 persons with a view to commit heinous crime during which one of the bombs had exploded;

And whereas, acting upon the information, the West Bengal Police had reached the incident spot and after thorough search recovered one packet roll cap, five pieces (roll) Jute made Sutali, and found good number of stones scattered lying at many places;

And whereas, during the course of investigation, sections 286, 326, 308, 304 and 120B of IPC were also added in the aforesaid case by the West Bengal Police;

And whereas, in a contempt petition CPAN No. 698 of 2024 filed in connection with Writ Petition No. 4543 of 2022 (Shekh Sarabat Ali Vs Union of India & Ors.), the Hon'ble High Court of Calcutta vide its judgment dated 24.05.2024 has ordered that chargesheet filed by the State police in the aforesaid case shall be transferred to the special NIA Court at the City Civil and Sessions Court at Calcutta and NIA shall continue investigation as well as prosecution of the chargesheet before the NIA Court;

Now, therefore, in view of the order dated 24.05.2024 of the Hon'ble High Court of Calcutta and in exercise of the powers conferred under sub-section (4) of section 6 read with section 8 of the National Investigation Agency Act, 2008, the Central Government hereby directs the National Investigation Agency to take up investigation of the aforesaid case.



(Vipul Alok)

Under Secretary to the Government of India

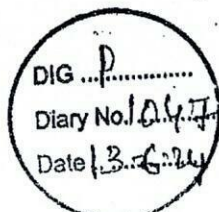
To:-

- ✓ The Director General, National Investigation Agency, CGO Complex, Lodhi Road, New Delhi
- The Chief Secretary to the Government of West Bengal
- The DGP, West Bengal

OFFICE OF THE DG/NIA

Diary No. E 29335

Date 12.6.24





FIRST INFORMATION REPORT (Under Section 154 Cr. P.C.)

7445

1. Dist. Haripur P.S. Amra Year 2022 FIR No. 19/22 Date 23/01/2022

2. (i) Act Sections (ii) Act Sections (iii) Other Acts & Sections 147/22 Date To 23/01/2022

3. (a) Occurrence of offence Day 23/01/2022 Time From 12:35 hrs Time To 13:45 hrs

(b) Information received at P.S. Date 23/01/2022 Time 13:45 hrs

(c) General Diary Reference : Entry No(s) 12/73 Time 23/01/2022

4. Type of information : No. 11/2022

5. Place of Occurrence : (a) Direction and Distance from P.S. South West 5 km Beat No. 100

(b) Address P.O. at a ground near Chanchipar P.S. under Amra P.S. Dist. Haripur

(c) In case outside limit of this Police Station, then the Name of P.S. Amra District Haripur

6. Complainant / Information : (a) Name Mr. Xepan Dasgupta Upadhyay

(b) Father's / Husband's Name Mr. Xepan Dasgupta

(c) Date / Year of Birth 19/01/2022 (d) Nationality Indian

(e) Passport No. 12/3456 Date of Issue 12/01/2022 Place of Issue Amra

(f) Occupation Student

(g) Address P.O. at Chanchipar P.S. under Amra P.S. Dist. Haripur

7. Details of known / suspected / unknown accused with full particulars (Attach separate sheet, if necessary) : 11/2022

8. Reasons for delay in reporting by the Complainant / Information : 11/2022

9. Particulars of properties stolen / involved (Attach separate sheet, if necessary) : 11/2022

10. Total value of properties stolen / involved 11/2022

11. Inquest Report / U. O. Case No. if any 11/2022

12. FIR Contents (Attach separate sheets, if required) : The original written complaint of the complainant which is treated as F.I.R. in a criminal case with reference to the above.

13. Action taken : Since the above report reveals commission of offence(s) as mentioned at Item No. 2 registered the case and took up investigation / directed to take up investigation on point of jurisdiction. FIR read over to the Complainant / informant, admitted to be correctly recorded and a copy given to the Complainant / informant free of cost.

14. Signature / Thumb Impression of the Complainant / informant. Signature of the Officer-in-Charge, Police Station

15. Date & Time of Despatch to the court : 23/01/2022

Certified to be true copy

Signature
Amra Police Station



The Officer In charge
Amta Police Station

Received on 23/02/2022
at 11:45 hrs, with Amta P.S G.D.E
No. 1293 and dated Amta P.S
Case No. 99/22 dt 23/02/2022 u/s
3/4/5 E.S Act.

Shag

23/02/2022

Ref: Chandrapur O.P under Amta P.S GDE No-502, Dt- 23.02.2022

Sub: Prayer for lodging FIR.

Sir,

I, SI Yogendranath Upadhyay of Chandrapur O.P under Amta PS do hereby lodge a written complaint to the fact that on 23.02.2022 at about 20.35 hrs received telephonic information that 3/4 persons were making live Bombs at a ground nearby Chandrapur Bazar with a view to commit heinous crime and at the time of the procedure, one bomb was blasted at the spot. So presence of police is urgently required to enquire the matter. I immediately informed the matter to O/C Chandrapur O.P and O/C Amta PS and incorporated the fact in Chandrapur O.P GDE No-510. As per kind direction of superiors myself along-with, HG/2142- Siddhartha Dey, C/480- Sk Sabir Hossain and others force left for Chandrapur Bazar area to work out the information.

I alongwith force reached at the P.O located near Chandrapur Bazar area at about 20.50 hrs and we noticed at the P.O that and throughout the search and inspection of the incident spot we found (1) One packets roll caps, (2) 5 pieces (Roll) Jute made Sutali and good numbers of stones are scattered lying at many places of the incident spot. On thorough interrogation of local people it came to light that 4 persons were making live Bombs and to use the same for creating heinous crime but they failed to supply the whereabouts of the accused persons. Thereafter, I seized those Explosive substances under proper seizure list in presence of witnesses. After that we held raid at the area but no fruitful results were achieved.

So I therefore pray that a specific case may kindly be initiated against 4 unknown involved accused persons u/s 3/4/5 E.S Act and arranged its Investigation.

Submitted,
Yogendranath Upadhyay
(SI Yogendranath Upadhyay)
Chandrapur O.P
Amta P.S., Howrah
Dt. 23.02.2022

Certified: 2 True copy

Amta Police Station
Howrah (R)

Seizure List

③

Chandrapur OP under Auto PS GDE no. 502
Dt. 23.02.22

* Date & time of seizure : On 23.02.22 inbetween
4:01 hrs to 21:20 hrs.

* Place of seizure : The vehicle in an abandon condition and
scattered lying at many places
in a vacate place near Chandrapur
Bazar under PS-Aulta.

* From whom seized : In an abandon condition.

* Seizure witnesses : 1) Saidul Khan (40) s/o. U.
Kawsud - s/o. Khan of
Chandrapur (Khan para) - PS
Aulta, Dist. Howrah.
2) Sarif Khan (39) s/o. U. Hasibul Khan
of do.

* Seizure Articles : ① One packet. RPH caps.
② 05 (five) pieces (RPH) Jute
made Sufali and good
numbers of stones.

Certified to be true copy

Officer-in-Charge
Amta Police Station
Howrah (R)

The above noted articles are
seized as demand of the above
noted case.

* Signature of witnesses.

①



s/o Saidul Khan.

②



s/o Sarif Khan

Prepared by
yogencha nath, Sub-Inspector
SI of Police
23.02.22 Amta PS, Howrah

OP no. 75/22
Dt. 24.02.22

24.05.2024
Court No.13
Item No.18
pk

**CPAN 698 of 2024
in
WPA 4543 of 2022**

**Sekh Sarabat Ali
Vs.**

**Ajya Kumar Valla, Ministry of Home Affairs, North
Block and others**

Mr. Sandipan Das
... for the petitioner.

Mr. Aritra Ghosh
... for the State.

Mr. Susovan Sengupta,
Mr. Subir Pal
... for the alleged contemnor nos. 2 & 4.

Mr. Ashok Kumar Chakraborti, Ld. A.S.G.
Mr. Arun Kumar Maiti,
Mr. S. K. Ghosh,
Mr. B. P. Banerjee,
Mr. D. Sen,
Mr. D. Tandon
... for the NIA.

1. Amta Police Station has filed a report indicating that they have handed over the relevant documents along with charge sheet to the NIA. The NIA shall take over the Charge Sheet being No. 344 of 2022 and its prosecution.
2. Let the charge sheet be transferred to the special NIA Court at the City Civil and Sessions Court at Calcutta. For the purpose of transfer as aforesaid, the NIA shall be deemed to have been ordered by the Ministry of Home Affairs under Section 6(3) of the NIA Act, 2008.

3. The NIA shall be entitled to file supplementary charge sheet if any further investigation is undertaken.
4. The learned Additional Solicitor General submits that the accused are not available or accessible to them. They are all on bail.
5. The Amta Police shall render all assistance to the NIA in accessing the accused for any purpose including further investigation. In the event, the accused are still not traceable and do not cooperate, the NIA shall be at liberty before the NIA Court to seek cancellation of the bail of the accused persons.
6. The NIA is, therefore, directed to continue investigation as well as prosecution of the charge sheet before the NIA Court.
7. With the aforesaid observations, the contempt application is disposed of.
8. The report of the Amta Police Station in the form of instructions addressed to State advocate is kept with the record.
9. There will be no order as to costs.

(Rajasekhar Mantha, J.)